

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANGELICA FIERRO,

Petitioner

VS.

WILLIAM THOMAS WHITEBONE,

Respondent

) Case Number: FDV-19-814812

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On August 16, 2019, Petitioner Mother filed an application for a domestic violence restraining order against Respondent Father. Father opposed the application and on August 12, 2020, a permanent restraining Order was entered against Father, with a termination date of August 6, 2025.
- 2) A paternity judgment was entered on June 24, 2020, concerning the minor child, Cecil B. Whitebone (DOB 05/05/2013). The parties were awarded joint legal and physical custody.
- 3) On September 25, 2025, Father filed an application for a domestic violence restraining order against Mother. The Court entered a Temporary Restraining Order on September 25, 2025. On November 26, 2025, the Court denied Father's request but entered an Order awarding parenting time to Father from Friday pick up after school to Monday drop off school; alternating every other week commencing 12/5/25; if no school, pick up exchange is at Fillmore police station at 10 am; if no school, Monday drop off at police station at 8 am; starting Saturday 11/29/25 and alternating every Saturday Father to have Cecil from 10-4 pm.

- 1 4) On April 29, 2026, Father filed a Request for Order seeking to modify child custody and
2 visitation and requested joint legal and joint physical custody every weekend from Friday after
3 school until Monday before school. Father alleges Mother interferes with the parenting schedule,
4 keeping Cecil home on his Friday pick up date. Father further alleges Cecil is truant from school
5 and Father wants access to school records.
- 6 5) On June 5, 2026, Mother filed a declaration, which was wholly inadequate. Rather than respond
7 to Father's allegations, Mother attached undated (and perhaps stale) text messages, a photo of
8 herself and outdated information which she previously provided to the Court in prior proceedings.
9 Mother fails to establish by admissible evidence her allegations against Father.
- 10 6) Both parties appeared for mediation on July 9, 2026, but it does not appear that any agreement
11 was reached.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child(ren) is the United States.
 - 17 2) The Court declines to change the legal or physical custody order. Father has not rebutted the
18 presumption of Family Code section 3044, which provides that an award of sole or joint physical
19 or legal custody of a child to a person who has perpetrated domestic violence is detrimental to the
20 best interest of the child.
 - 21 3) Notwithstanding the above, Father is entitled to access Cecil's medical and school records and the
22 Court orders this access. Furthermore, there is no order prohibiting Father from going to Cecil's
23 school or attending events there.
 - 24 4) The Court finds that neither party has been civil to the other with respect to the best interests of
25 their child. The Court orders the parties to attend and complete a co-parenting class and enroll in
26 such and provide proof of completion to the Court within thirty days.
 - 27 5) The Court further finds that Mother is and has interfered with Father's time with Cecil.
 - 28 6) The parties are ordered to communicate with each other via the OurFamilyWizard application.
- 29

1 7) The parenting time schedule will remain as previously ordered, except that if Cecil is not at
2 school on one of the days Father is to pick him up then the exchange shall be at the Fillmore
3 Police Station at 2:00 p.m.

4 8) The Court sets a **review hearing on 11/24/26 at 9 AM in Dept. 403.** Supplemental Declarations
5 are ordered filed and served no later than ten court days prior to the hearing.

6 9) The Court will prepare the Findings and Order after Hearing.
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